



INDIAN POLITY

GOVERNOR (PART- I)

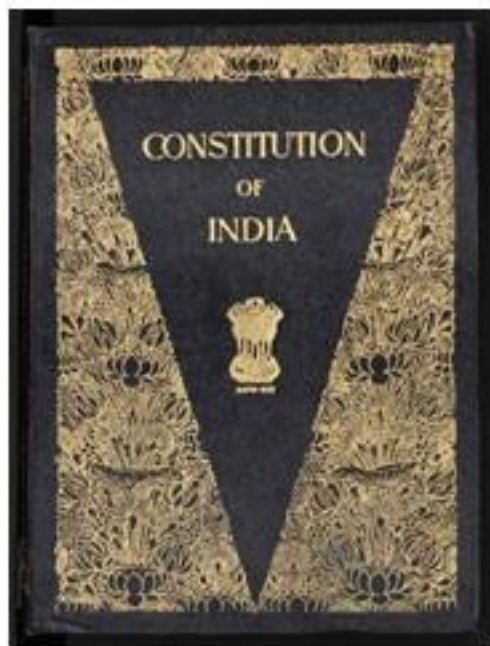
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Articles 153 to 167 in Part VI of the Constitution



The 7th Constitutional Amendment Act of 1956 facilitated the appointment of the same person as a governor for two or more states.

- 1 The Constitution of India envisages the same pattern of government in the states as that for the Centre, that is, a parliamentary system.
- 2 The state executive consists of the governor, the chief minister, the council of ministers and the advocate general of the state.
- 3 Like the president, he is a nominal executive head.
- 4 The governor also acts as an agent of the central government.

APPOINTMENT OF GOVERNOR



Pranab Mukherjee

PRANAB MUKHERJEE, PRESIDENT OF INDIA, TO ALL WHO
SHALL SEE THESE, PRESENTS GREETINGS;

President's "hand and seal"

- ◆ The governor is neither directly elected by the people nor indirectly elected by a specially constituted electoral college as is the case with the president.
- ◆ He is appointed by the president by warrant under his hand and seal.
- ◆ It is an independent constitutional office and is not under the control of or subordinate to the Central government.

GOVERNOR



9 The CM would like his nominee to contest for governorship. Hence, a 2nd rate man of the ruling party is elected as governor.

8 Direct election creates a serious problem of leadership at the time of a general election in the state.

7 The system of Presidential nomination imposes Centre's control over the States.

6 Create separatist tendencies affecting political stability.

5 An elected governor would be partisan and not neutral.

1 Incompatibility with the parliamentary system

2 Create conflicts between the governor and the chief minister

3 Being a constitutional head, no point in making elaborate arrangements for his election and spending huge money.

4 Not in the national interest to involve a large number of voters in such an election

Therefore, the American model, where the Governor of a state is directly elected, was dropped and the Canadian model, where he is appointed by the Governor-General, was adopted.

GOVERNOR

QUALIFICATIONS OF GOVERNOR

The Constitution lays down only two qualifications for the appointment of a person as a governor.

TWO QUALIFICATIONS...

- 1 He should be a citizen of India.
- 2 He should have completed the age of 35 years.



TWO CONVENTIONS...

- 1 He should be an outsider, that is, he should not belong to the state where he is appointed, so that he is free from the local politics.
- 2 While appointing the governor, the president is required to consult the chief minister of the state concerned, so that the smooth functioning of the constitutional machinery in the state is ensured.

7 His emoluments and allowances cannot be diminished during his term of office.

6 When the same person is appointed as the governor of two or more states, the emoluments and allowances payable to him are shared by the states in such proportion as determined by the president.

5 He is entitled to such emoluments, allowances and privileges as may be determined by Parliament.



1 He should not be a member of either House of Parliament or a House of the state legislature.

2 If any such person is appointed as governor, he is deemed to have vacated his seat in that House on the date on which he enters upon his office as the governor.

3 He should not hold any other office of profit.

4 He is entitled without payment of rent to the use of his official residence (the Raj Bhavan).

IMMUNITIES

- ◆ He enjoys personal immunity from legal liability for his official acts.
- ◆ During his term of office, he is immune from any criminal proceedings, even in respect of his personal acts.
- ◆ He cannot be arrested or imprisoned.
- ◆ However, after giving two months' notice, civil proceedings can be instituted against him during his term of office in respect of his personal acts.

OATH

- ◆ To faithfully execute the office;
- ◆ To preserve, protect and defend the Constitution and the law; and
- ◆ To devote himself to the service and well-being of the people of the state.



The oath of office to the governor is administered by the chief justice of the concerned state high court and in his absence, the senior-most judge of that court available.

TERM OF GOVERNOR'S OFFICE

- 1 A governor holds office for a term of five years from the date on which he enters upon his office.
- 2 However, this term of five years is subject to the pleasure of the President.
- 3 Further, he can resign at any time by addressing a resignation letter to the President.
- 4 The Supreme Court held that the pleasure of the President is not justifiable.
- 5 The governor has no security of tenure and no fixed term of office.
- 6 He may be removed by the President at any time.
- 7 The Constitution does not lay down any grounds upon which a governor may be removed by the President.

GOVERNOR

TRANSFER OF GOVERNOR

- The President may transfer a Governor appointed to one state to another state for the rest of the term.
- Further, a Governor whose term has expired may be reappointed in the same state or any other state.

CASE OF INTERREGNUM

- A governor can hold office beyond his term of five years until his successor assumes charge.
- The underlying idea is that there must be a governor in the state and there cannot be an interregnum.

CHIEF JUSTICE AS GOV.

- The President can make such provision as he thinks fit for the discharge of the functions of the governor in any contingency not provided for in the Constitution, for example, the death of a sitting governor.
- Thus, the chief justice of the concerned state high court may be appointed temporarily to discharge the functions of the governor of that state.

GOVERNOR

POWERS AND FUNCTIONS OF GOVERNOR

EXECUTIVE POWERS

- 1** All executive actions of the government of a state are formally taken in his name.
- 2** He can make rules specifying the manner in which the Orders and other instruments made and executed in his name shall be authenticated.
- 3** He can make rules for more convenient transaction of the business of a state government and for the allocation among the ministers of the said business.
- 4** He appoints the chief minister and other ministers. They also hold office during his pleasure.
- 5** Appoints the advocate general of a state and determines his remuneration.
- 6** Appoints the state election commissioner and determines his conditions of service and tenure of office.

GOVERNOR

POWERS AND FUNCTIONS OF GOVERNOR

EXECUTIVE POWERS

- 7** Appoints the chairman and members of the state public service commission. However, they can be removed only by the president and not by a governor.
- 8** Can seek any information relating to the administration of the affairs of the state
- 9** He can require the chief minister to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.
- 10** He can recommend the imposition of constitutional emergency in a state to the president.
- 11** During the period of President's rule in a state, the governor enjoys extensive executive powers as an agent of the President.
- 12** He acts as the chancellor of universities in the state.

POWERS AND FUNCTIONS OF GOVERNOR

LEGISLATIVE POWERS

- 1** He can summon or prorogue the state legislature and dissolve the state legislative assembly.
- 2** He can address the state legislature at the commencement of the first session after each general election and the first session of each year
- 3** He can send messages to the house or houses of the state legislature, with respect to a bill pending in the legislature or otherwise.
- 4** He can appoint any member of the legislative assembly to preside over its proceedings when the offices of both the Speaker and the Deputy Speaker fall vacant.
- 5** He nominates one-sixth of the members of the state legislative council.
- 6** Nominate one member from the Anglo-Indian Community.
- 7** He decides on the question of disqualification of members of the state legislature in consultation with the Election Commission.

POWERS AND FUNCTIONS OF GOVERNOR

LEGISLATIVE POWERS

a) Give his assent to the bill

b) Withhold his assent to the bill

c) Return the bill, if it is not a money bill.

8. BILL SENT TO GOVERNOR

d) Reserve the bill for the consideration of the president



Obligatory : When the bill endangers the position of the state high court

Other Cases:

- 1) Ultra-vires, to the Constitution.
- 2) Opposed to the DPSP.
- 3) Against the larger interest of the country.
- 4) Of grave national importance.
- 5) Dealing with compulsory acquisition of property under Article 31A of the Constitution.

GOVERNOR

POWERS AND FUNCTIONS OF GOVERNOR

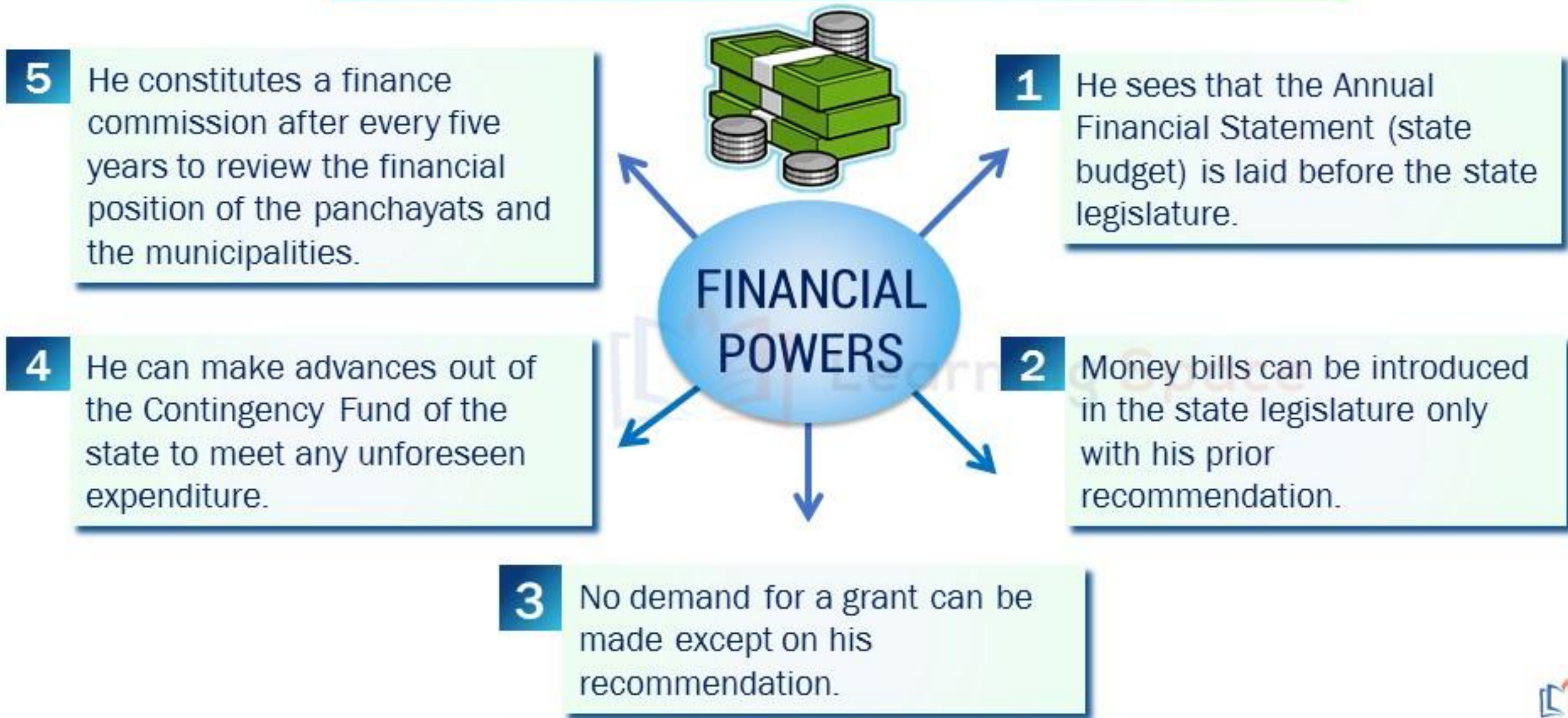
LEGISLATIVE POWERS

- 9** He can promulgate ordinances when the state legislature is not in session.



- 10** These ordinances must be approved by the state legislature within six weeks from its reassembly.
- 11** He can also withdraw an ordinance anytime.
- 12** This is the most important legislative power of the governor
- 13** He lays the reports of the State Finance Commission, the State Public Service Commission and the Comptroller and Auditor-General relating to the accounts of the state, before the state legislature.

POWERS AND FUNCTIONS OF GOVERNOR



POWERS AND FUNCTIONS OF GOVERNOR

4 He also appoints persons to the judicial service of the state (other than district judges) in consultation with the state high court and the State Public Service Commission.

3 He makes appointments, postings and promotions of the district judges in consultation with the state high court.

JUDICIAL POWERS

1 He can grant pardons, reprieves, respites and remissions of punishment or suspend, remit and commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the state extends.

2 He is consulted by the president while appointing the judges of the concerned state high court.



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